



CHAPTER 30.

An Act to secure to the public access to mountains,
moorlands and certain other land.

[13th July 1939.]

WHEREAS it is desirable to secure to the public access to mountain, moor land and certain other land, subject to proper provisions for preventing any abuse of such access :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, no owner or occupier of, or person having an interest in, land to which this Act applies shall be entitled to exclude any person from entering or being on the land, on any day between one hour before sunrise and one hour after sunset, for the purpose of air and pedestrian exercise so long as he—

Persons not to be prevented from walking on land to which this Act applies.

(a) observes any limitations and conditions specified in relation to the land in an order made by the Minister of Agriculture and Fisheries (in this Act referred to as "the Minister ") under section three of this Act;

(b) does not contravene any direction given in relation thereto by an order made by the Minister under section five of this Act; and

(c) does not contravene in relation thereto any of the provisions specified in section six of this Act:

Provided that this subsection shall not have effect in the case of land which is excepted land within the meaning of section two of this Act.

(2) An order may be made by the Minister, under and subject to the provisions of section three of this Act, applying this Act to any land of a kind mentioned in subsection (1) of the next succeeding section, and the land to which this Act applies shall be all land which is for the time being included in the maps to be attached under this Act to orders so made and is shown thereon as being such land.

(3) An order made under section three of this Act may specify limitations and conditions to which the application of this Act to any land is to be subject, including in particular, but without prejudice to the generality of this provision, limitations and conditions having the effect of prohibiting persons from entering at particular times upon land to which this Act applies or from entering upon particular areas in such land.

(4) An order made under section three of this Act may specify or describe places for entry on land to which this Act applies, and may provide that subsection (1) of this section shall not have effect as respects persons entering thereon elsewhere than at those places.

Kinds of
land to
which this
Act may
be applied,
and ex-
cepted land.

2.—(1) The kinds of land as to which an order applying this Act thereto may be made shall be land which in the opinion of the Minister is mountain, moor, heath, down or cliff.

(2) The following land shall be excepted land, that is to say,—

(a) land covered by buildings or the curtilage thereof, or developed or used, or in process of development, for residential, commercial, industrial, burial ground or sewage disposal purposes, or for the purpose of making, storing, keeping or testing weapons, projectiles or explosives, and land within such a distance from any land or premises used for any of the said purposes that access by the public thereto would involve interference with the privacy of

the land or premises, or danger from or to the carrying on of any of the said purposes ;

- (b) agricultural land, that is to say, land used as arable, meadow or pasture ground, or for the purpose of poultry farming, market gardens, nursery grounds, orchard or allotments, including allotment gardens within the meaning of the Allotments Act, 1922, so however that a tract of mountain, moor, heath, down or cliff, shall not be treated as pasture ground for the purposes of this paragraph by reason only of the fact that sheep or cattle graze thereon; 12 & 13
Geo. 5. c. 51.
- (c) land used for a plantation or a wood or for the growth of saleable underwood ;
- (d) land used for the purpose of a park, garden or pleasure ground or otherwise for the amenity or convenience of a dwelling-house ;
- (e) land used for the purpose of a golf course, race-course, training gallop, sports ground, recreation or pleasure ground, shooting range, or aerodrome ;
- (f) land vested in or under the control of a local authority (including any authority having power to levy a rate as defined for the purposes of the Rating and Valuation Act, 1925, or for whose expense a precept may be issued for the levying of such a rate, and any combination or joint committee of any such authorities as aforesaid), and used for the purpose of a park, open space, playing field, or for any similar purpose, and land acquired by such an authority for any such purpose ; 15 & 16
Geo. 5. c. 90.
- (g) land developed or used, or in process of development, for quarrying or mining by means of open working, for the taking of stone, sand, gravel, clay, chalk, or other material, for boring, well sinking, shaft sinking, or other excavation, or for a railway (including a light railway) or tramway, and land within such a distance from any land or premises used for any of the said purposes that access by the public thereto would involve interference with the privacy of the land or premises or danger from or to the carrying on of any of the said purposes ;

15 & 16
Geo. 5. c. 20.

(h) land to which section one hundred and ninety-three of the Law of Property Act, 1925, for the time being applies.

(3) Any public department may, subject to the approval of the Treasury, give notice to the Minister that it appears to them to be expedient that this Act should have effect in relation to any land which is under their control, or vested in them for public purposes or for the public service, in like manner as if this Act had bound the Crown, and, where a notice is so given, this Act shall have effect accordingly until the notice is withdrawn by a subsequent notice given to the Minister by the department.

This subsection shall have effect in relation to land under the control of, or vested in, the Minister with the substitution, for references to such a notice as aforesaid, of references to a declaration made by him.

Provisions as
to making,
variation
and revoca-
tion of
orders as to
application
of this Act.

3.—(1) An order applying this Act to land may be made on the application—

- (a) of the owner of the land, that is to say, the person entitled, otherwise than by virtue of powers vested in him as a mortgagee, to dispose of the fee simple thereof;
- (b) of the council of any county, of any borough, or of any urban district having a population according to the last published census of more than twenty thousand ; or
- (c) of any organisation deemed by the Minister sufficiently representative of the persons likely to be benefited by the application of this Act to the land ;

and not otherwise :

Provided that, to an application made by the owner of land of which another person is the occupier, or in which any other person has an interest not capable of being bound or over-reached by a disposition made by the owner thereof, the consent of the occupier, or of that person, as the case may be, shall be requisite.

(2) An application for such an order shall describe by reference to a map the land to which it is proposed that this Act should be applied by the order.

(3) An application for such an order shall give particulars of any limitations and conditions which it is proposed that the order should specify, and of any provisions proposed to be included in the order by virtue of subsection (4) of section one of this Act.

(4) At least one month before submitting an application for such an order to the Minister, the applicant shall cause to be published, in such manner as the Minister may direct, a notice of the applicant's intention to apply for such an order—

(a) specifying a place where the application and the map required by subsection (2) of this section may be inspected and where copies of the particulars required by subsection (3) thereof may be obtained, and specifying the price (being a price approved by the Minister) at which such copies will be supplied; and

(b) stating that the applicant is prepared to receive and consider any objection which may be made to him in writing within such period (not being less than one month) after the date of the publication of the notice as may be specified therein ;

and shall serve a copy of the notice on the owner of the land to which this Act is proposed to be applied (if not the applicant) and on such other persons as the Minister may direct.

(5) When submitting the application to the Minister, the applicant shall transmit to him any objection made to the applicant in writing before the end of the period specified in the notice, other than an objection which has been withdrawn, and the Minister shall consider any such objections, and may thereafter, and after holding such inquiries (if any) as he thinks fit, make an order in accordance with the application, with or without modification, if it appears to him to be expedient so to do having regard to all the circumstances, including the extent to which access by the public to the land to which the application relates has been allowed in the past :

Provided that—

(a) where an objection to the application has been duly made by any person appearing to the Minister to be affected thereby, and is not

withdrawn, the Minister, unless he considers the objection to be frivolous or irrelevant, shall, before making an order, cause a public local inquiry to be held with respect to the objection (at which the applicant and the objector and any other person deemed by the person holding the inquiry to be sufficiently interested shall be entitled to appear and to be heard), and shall consider the report of the person holding the inquiry;

- (b) an order shall not apply this Act to any land not included in the land shown on the map referred to in the application as being land to which this Act is proposed to be applied; and
- (c) if the Minister is of opinion that material depreciation of the capital or rental value of the land to which the application relates, or material loss or damage to the owner or occupier thereof or to any person having an interest therein, would be caused by the making of an order in accordance with the application without modification, the Minister shall make such modifications as are in his opinion necessary in order to prevent such depreciation, loss or damage, or, if it is in his opinion impracticable so to do, shall refuse to make an order.

(6) An order made under this section may be varied or revoked by an order made by the Minister in accordance with the subsequent provisions of this section.

(7) In relation to a varying order providing for the application of this Act to land, subsections (1) to (5) of this section shall have effect as they have effect in relation to an original order so providing.

(8) In relation to a revoking order, or a varying order not providing for the application of this Act to land, subsections (1), (3), (4) and (5) of this section (except, in the case of a revoking order, subsection (3) and paragraph (a) of subsection (4)) shall have effect with the substitution, for references to the application of this Act to land, of references to the revocation or variation and, for references to the particulars required

by subsection (3), of references to particulars of any variation applied for :

Provided that the persons by whom an application may be made shall include any person who is an occupier of, or has an interest in, any of the land to which this Act for the time being applies by virtue of the order proposed to be revoked or varied, and who claims that the revocation or variation is requisite in order to prevent such depreciation, loss or damage as aforesaid, or in order to prevent the continuance of acts which are offences under this Act, and if the Minister is of opinion that a revocation or variation is so requisite, he shall make a varying order giving such directions as are in his opinion necessary in order to prevent such depreciation, loss or damage, or the continuance of such acts, or, if it is in his opinion impracticable so to do, shall make a revoking order.

(9) The provisions of subsections (2) to (5) of section two hundred and ninety of the Local Government Act, 1933, shall apply to any inquiry under this section as they apply to local inquiries under that section, subject to the following modifications, that is to say—

23 & 24
Geo. 5. c. 51.

- (a) for references to a department, there shall be substituted references to the Minister ;
- (b) for the reference in proviso (b) to subsection (2) to the property of a local authority, there shall be substituted a reference to land to which the application giving rise to the inquiry relates ; and
- (c) subsection (4) shall have effect as if references therein to the payment of costs by a local authority not being a party to the inquiry had been omitted.

(10) The Minister may require an applicant for an order under this section to cause to be published in such manner, and to serve on such persons, as the Minister may direct notice of the making of the order, and may refuse to make the order until he is satisfied that the requirement will be complied with.

(11) The Minister shall deposit a copy of any order made by him under this section with the clerk of the council of each county or county borough which comprises any part of the land to which the order relates.

(12) There shall be chargeable in respect of any business transacted by the Minister under this section such fees as he may with the approval of the Treasury determine.

Maps to be attached to orders and deposited with county authorities.

4.—(1) When this Act is applied to any land by virtue of an order other than a varying order, the Minister shall attach to the order a map showing the land to which this Act is applied thereby.

(2) When this Act is applied to any land, or ceases to apply to any land, by virtue of a varying order, the Minister shall, by alteration of the map attached to the original order or by substitution of a new map, secure that there shall at all times be attached to the original order a map which conforms to the provisions of that order as varied.

(3) The Minister shall deposit a copy of any map or substituted map attached by him to an order with the clerk of the council of each county or county borough which comprises any part of the land to which this Act applies by virtue of the order and of any variation thereof, and shall notify to the clerk any alteration made therein by the Minister, and the clerk shall retain any map deposited with him under this subsection until it is superseded by a substituted map or the relevant order is revoked, and shall alter it in accordance with any such alteration as aforesaid notified to him.

Power to prohibit entry when fires likely to result.

5.—(1) If, upon an application made to the Minister by the owner or occupier of any land to which this Act for the time being applies, or by any other person deemed by him to be sufficiently interested therein, the Minister is satisfied that, by reason of any exceptional conditions of weather for the time being prevailing, access by the public to the land or to any part thereof is likely to result in fires occurring thereon, he may by order direct that during such period as may be specified in the order no person shall, without lawful authority (proof of the possession whereof shall lie upon him), enter upon the land or upon any particular area therein specified in the order.

(2) An order made under this section may be revoked or varied by a subsequent order made by the Minister.

6. No person shall without lawful authority (proof of the possession whereof shall lie upon him) in or upon any land to which this Act applies—

Conditions
to be ob-
served on
land to
which this
Act applies.

- (a) draw, drive, ride, or use any carriage, cart, caravan, truck, cycle, or motor or other vehicle;
- (b) light any fire or do any act which causes or is likely to cause a fire;
- (c) take, or allow to enter or remain, any dog not under proper control;
- (d) wilfully pursue, disturb, interfere with or injure any animal, bird or fish, or take or injure any eggs or nests;
- (e) bathe in any non-tidal water in contravention of a notice displayed near the water prohibiting bathing;
- (f) engage in any operations of or connected with hunting (otherwise than as a bonâ fide rider or huntsman with or follower of any pack of hounds), shooting, fishing, snaring, taking or destroying of animals, birds or fish, or bring or have any engine, instrument or apparatus used for hunting, shooting, fishing, snaring, taking or destroying animals, birds or fish;
- (g) wilfully damage the land or anything thereon or therein;
- (h) wilfully injure, remove, or destroy any plant, shrub, tree, or root or any part thereof;
- (i) obstruct the flow of any drain or watercourse, open, shut or otherwise interfere with, any sluice-gate or other apparatus, break through any hedge, fence or wall, or neglect to shut any gate;
- (j) affix or write any advertisement, bill, placard or notice;
- (k) deposit and leave any glass, china, earthenware, tin, carton, paper or other rubbish, so as to create, or tend to create, a litter;
- (l) engage in any riotous, disorderly or indecent conduct;

- (m) wantonly disturb, annoy, or obstruct any person engaged in any lawful occupation;
- (n) hold any political meeting or deliver any political address; or
- (o) hinder or obstruct the owner or occupier of the land or any person having an interest therein, or any person acting under the authority of the owner, occupier or person interested, in the exercise of any right or power vested in him by virtue of this Act or otherwise.

Offences
and en-
forcement.

7.—(1) Any person who, in or upon any land to which this Act applies, contravenes or fails to observe any of the provisions specified in the last preceding section or any limitation or condition specified in relation thereto in an order made under section three of this Act, or any direction given in relation thereto by an order made under section five of this Act, shall be guilty of an offence under this section :

Provided that—

- (a) in relation to a contravention of or failure to observe a limitation or condition specified in an order made under section three of this Act, this subsection shall have effect only if it is expressly provided by an order so made that this subsection shall have effect in relation thereto, and the Minister shall not make an order containing such provision unless he is satisfied that it is necessary so to do in order to prevent the continuance of contraventions of, or failure to observe, the condition or limitation, or in the public interest;
- (b) a person shall not be guilty of an offence under this section by reason only of any unintentional failure to observe, or contravention of, a limitation, condition, or direction, prohibiting him from entering upon land to which this Act applies, or upon any particular area therein; and
- (c) it shall not be an offence under this section to draw or drive a motor vehicle on any land within fifteen yards of a road, being a highway

or any other road to which the public has access, and on which a motor vehicle may lawfully be driven, for the purpose only of parking the vehicle on that land, so however that nothing in this paragraph shall be construed as affecting the law of trespass to land, or any right or remedy to which any person may by law be entitled in respect of any such trespass, or in particular as conferring any right to park a vehicle on any land.

(2) If the owner or occupier of land to which this Act applies or any person having an interest therein, or any person acting under the authority of the owner, occupier or person interested, has reason to think that any person present on the land has been guilty of an offence under this section in relation thereto, he may (on production, if he is acting under authority and is so requested, of evidence of his authority) require that person to give his full name and address, and if that person when so required refuses to give his full name and address or gives a false name or address, he shall be guilty of an offence under this section.

(3) Any person guilty of an offence under this section shall, without prejudice to any other liability, be liable, on summary conviction, to a fine not exceeding, in the case of a contravention of any of the provisions specified in paragraph (b) of section six of this Act, five pounds for the first offence and ten pounds for any subsequent offence, and, in the case of any other offence, two pounds.

(4) If any person, by any act or omission which constitutes an offence under this section, does, or causes to be done, any damage to property, he shall, on conviction of the offence, be liable upon the application of the person who sustains the damage to be ordered to pay to him as compensation therefor such sum not exceeding ten pounds as the court before which he is convicted may consider reasonable :

Provided that this subsection shall not prevent the taking of any other legal proceedings in respect of that damage, so however that a person shall not be proceeded against twice in respect of the same claim.

Saving of
rights.

8.—(1) Neither the access for air and pedestrian exercise to any land to which this Act for the time being applies nor any provision of this Act shall—

- (a) prejudice or affect any right or power with respect to the use of the land vested in the owner or occupier thereof or in any person having an interest therein; or
- (b) prejudice or affect any right to withdraw support from the land; or
- (c) notwithstanding anything in any other Act, or in any statutory order, scheme or regulation, subject any person to any obligation to fence, or provide protection against any danger from quarries, mines, shafts, drains, wells, holes, reservoirs, ponds, watercourses, pipelines, aqueducts, posts, ropeways, transmission lines or electricity apparatus, or any places which may be or become sources of danger; or
- (d) subject the owner or occupier of the land or any person having an interest therein to any liability in respect of any act or thing done, or omitted to be done, by any person allowed in consequence of this Act to have access to the land; or
- (e) constitute the land an open place of resort for the public within the meaning of any licence under the Explosives Act, 1875, or subject any person to any statutory or other restriction in relation to the establishment or maintenance of any factory, magazine, or store, for gunpowder or other explosives, or the making, storage, or keeping of any such explosives; or
- (f) affect any highway or any right of way or other right or easement or afford evidence or ground for establishing or negating a presumption of dedication of a highway, or the grant of a right of way or other right or easement.

(2) In respect of injury sustained on land to which this Act applies, neither the owner nor the occupier thereof nor any person having an interest therein shall be under any greater liability than he would have been under if the land had not been land to which this Act applies and persons allowed in consequence of this Act to have access thereto had been trespassers thereon:

38 & 39 Viot.
c. 17.

Provided that nothing in this subsection shall be construed as authorising the owner or occupier of land to which this Act applies, or any person having an interest therein, to do or cause to be done thereon anything involving a contravention of subsection (1) of section one of this Act.

9.—(1) If, on an application for an order applying this Act to land, the Minister is of opinion that the making of an order in accordance with the application without modification would involve danger of pollution of a water supply of statutory water undertakers, he shall, in making any order in accordance with the application, make it with such modifications as are in his opinion necessary in order to prevent that danger arising, or, if it is in his opinion impracticable so to do, shall refuse to make an order.

Protection
of statutory
water
under-
takers.

(2) If, on a representation made to him by any statutory water undertakers or otherwise, the Minister is of opinion that the revocation or variation of an order made under section three of this Act is requisite in order to prevent danger of pollution of a water supply arising or continuing, he shall make a varying order giving such directions as are in his opinion requisite for that purpose, or, if it is in his opinion impracticable so to do, shall make a revoking order.

(3) Section three of this Act shall have effect subject to the preceding provisions of this section.

(4) In this section the expression "statutory water undertakers" means any company, local authority, board, committee, or other persons or person supplying water under an enactment, and the expression "enactment" means an enactment in any Act of Parliament, whether public general, local or private, and a provision in an order confirmed by, or made under, an Act of Parliament.

10. The council of a county, of a borough, or of an urban district having a population according to the last published census of more than twenty thousand, may pay or contribute towards—

Contribu-
tion by
certain
local autho-
rities to
expenses.

- (a) the expenses of the provision on land to which this Act applies of any facilities for the public, or works for the protection of the owner or occupier of the land or of the public;

- (b) the expenses of the provision and upkeep of notice boards on any such land; and
- (c) the expenses of, or incidental to, any application to the Minister for an order under section three of this Act.

Power to
make regu-
lations.

11.—(1) The Minister may make regulations for giving effect to the purposes of this Act and, in particular, for prescribing the procedure to be followed in connection with the making of applications for orders under this Act.

(2) All regulations made under this section shall be laid as soon as may be before Parliament, and, if either House within the next twenty-eight days on which that House has sat after any such regulation has been laid before it resolves that the regulation be annulled, it shall thenceforth be void, but without prejudice, however, to the validity of anything previously done thereunder or to the making of a new regulation.

Short title,
commence-
ment, extent
and inter-
pretation.

12.—(1) This Act may be cited as the *Access to Mountains Act, 1939*, and shall come into operation on the first day of January nineteen hundred and forty.

(2) This Act shall not extend to Scotland, or to Northern Ireland.

(3) In this Act references to a person having an interest in land include references to a person entitled to sporting rights thereover, notwithstanding that such rights may be enjoyed by way of licence only.

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